



Adbri - Eureka

MN-50021

Phase 1 Determination

Acquisition may be put into effect

9 July 2026

1. Determination and statement of reasons

Notified acquisition	Adbri Pty Ltd (Adbri) proposes to acquire the business of Eureka Concrete (Holdings) Pty Ltd (Eureka)(together, the Parties), including its ready-mix concrete (RMX) operations, quarry assets, plant and equipment, motor vehicles, certain freehold properties, intellectual property, and associated business contracts, together with the transfer of employees (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Adbri, supplies cement, RMX and aggregates nationally, including through E.B Mawson & Sons Pty Ltd, Central Pre-Mix Concrete Pty Ltd and Hy-Tec Industries (Victoria) Pty Ltd. The target, Eureka, is a supplier of RMX and sand quarry products in Victoria, operating 4 concrete batch plants located in Ballarat, Beaufort, Ballan and Maryborough and a sand quarry in Amphitheatre.
Overlap between the parties	The Parties overlap in the supply of RMX and sand quarry products in Victoria.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and prior relevant merger assessments. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • The Acquisition would not result in a material increase in Adbri's share of supply in RMX in any relevant overlapping geographic area. • Adbri would continue to compete with many alternative suppliers of RMX in each overlapping geographic area. • The Parties do not supply quarry products in overlapping geographic areas.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**